

March 15, 2025

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Policy Executive Office of the President
2415 Eisenhower Avenue Alexandria, VA 22314

Submitted by email to [REDACTED]

Re: Request for Information (RFI) on the Development of an Artificial Intelligence (AI) Action Plan

I submit this document as an AI entrepreneur and engineer who has sold two companies, helped lead advertising algorithm orgs delivering billions in revenue, hired more than a hundred engineers personally, and worked on the commercialization of AI for more than a decade. I know firsthand that America's ability to remain the global leader in AI depends on the brightest minds, regardless of where they were born. One of America's greatest advantages in this industry is that so many of the world's best and brightest want to move here. But red tape, delays, and uncertainty in their immigration hampers our recruitment efforts, deters talent from coming to the United States, and blocks talent who are here from starting companies or taking other risks in the private sector.

I appreciate the opportunity to respond to this Request for Information (RFI) on "priority policy actions needed to sustain and enhance America's AI dominance." Providing international talent and the private sector greater certainty and predictability in navigating the immigration process will help supercharge private sector AI innovation.

International talent is vital to AI innovation but immigration bottlenecks threaten US leadership.

The U.S. has long benefited from attracting the top minds in AI research and engineering from around the world. More than half of STEM PhD graduates today are foreign nationals¹ and most computer scientist PhDs graduates hired by U.S. companies are immigrants.² Without them, we'd be even further behind China, which has surpassed the US in the number of advanced STEM graduates it educates annually.³

Foreign-born researchers and engineers have played pivotal roles in developing foundational AI technologies. Nearly two-thirds (65%) of the top AI companies in the U.S. were founded by immigrants.⁴

¹ Remco Zwetsloot, Jacob Feldgoise, and James Dunham, "Trends in U.S. Intention-to-Stay Rates of International Ph.D. Graduates Across Nationality and STEM Fields," Center for Security and Emerging Technology, 2020.

² Alison Snyder, "Foreign-born STEM talent remains key to U.S. research," *Axios* March 13, 2024.

³ Jeremy Neufeld, "STEM Immigration is Critical to American National Security," IFP, March 30, 2022.

⁴ Stuart Anderson, "AI and Immigrants," National Foundation for American Policy, June 2023.

However, inefficient visa processing, excessive regulatory red tape, and outdated bureaucratic processes threaten to undercut the country's ability to attract and retain the best AI talent. Delays in visa approvals and green card processing create unnecessary uncertainty for high-skilled workers, often pushing them toward other countries with more efficient and predictable immigration policies, or into low-risk sectors in the U.S. like academia rather than commercializing their ideas. The US was the destination for 65% of elite AI talent in 2019 but fell to 57% in 2022. China, the UK, and South Korea have all made relative gains.⁵ And the share of foreign-born AI talent graduating from U.S. universities who stay in the US after completing their PhDs has fallen from 86% to 77%.⁶ The U.S. must take steps to ensure that the world's most skilled AI professionals continue to see America as the best place to study, work, and innovate.

Recommendations

To ensure AI immigration policy aligns with national AI priorities, I recommend:

- **Cut red tape and promote efficiency:** The current immigration system is inefficient and bogged down by unnecessary administrative hurdles, which slow down companies' ability to hire and retain talent, while deterring promising people from the U.S. Processing delays at the Department of Labor, US Citizenship and Immigration Services, and at the Department of State all need greater efficiency.
 - **Schedule A and special handling.** The labor certification process, a necessary step for many hires, now faces delays that can take up to two years. Updating the Schedule A shortage occupation list to include AI-related occupations would allow green card petitions to be filed without costly and time-intensive labor individualized certifications. Furthermore, special handling for AI talent would allow an employer to get a labor certification with a competitive recruitment process rather than outdated job postings.
 - **Expand premium processing.** DHS also offers premium processing for a fee that promises faster adjudications. DHS could expand premium processing to other categories, including for international entrepreneurs applying for the international entrepreneur rule.
 - **Expand domestic visa renewals.** Visa renewals currently require immigrants to travel abroad, which is highly disruptive to their work and interrupts the work they were admitted to do. Resuming domestic visa renewals would allow an easier more efficient renewal process.
 - **Establishing processing timelines.** The administration should also establish clear standards for efficient processing timelines that agencies are instructed to target.
 - **AI for visa processing.** Immigration processing still relies too much on outdated paper records. The administration should complete USCIS's plan to digitize the

⁵ "The Global AI Talent Tracker 2.0," *Paulson Institute*.

⁶ *Ibid.*

process and pilot innovative uses of AI technology to improve efficiency where appropriate.

- **Strengthen retention.** Too much excellent talent who want to stay to contribute to the U.S. are educated at US universities and are forced to leave because of visa hurdles. Visas like the O-1 for extraordinary ability can recruit the best of them, but many immigrants are denied for expressing interest in staying in the United States. New guidance should clarify that the O-1 is a “dual intent” visa.
- **Unlock immigrant entrepreneurship.** New guidance establishing how visa holders can found companies while on their O-1A or H-1B would create certainty for immigrants considering launching new startups. The process should be streamlined, fast, and predictable. For example, securing sufficient investments should be considered sufficient evidence of extraordinary ability for an O-1A visa.

AI leadership requires the workforce that will make it happen. Immigration policy is a strategic tool that should be integrated into U.S. AI policy to ensure the nation continues to attract and retain the world’s leading AI talent. The AI industry is nothing without its people, including the many talented AI workers, researchers, and entrepreneurs born abroad.

Thank you for the opportunity to share my comments.

Signed,

Dwight Crow

CEO Additive AI
Previously Head of eCommerce Product Team Meta
Previously CEO of Whisper.ai (Sold to Meta 2022)

